

	AREA	TOR	Terms of Reference
	POLICY	006	Governance Committee
	OWNERS	Governance Committee	
	AFFECTS	Governance Committee, Board of Directors	

TOR-006 | Governance Committee

PREAMBLE, SCOPE, & MANDATE

1. The Governance Committee is responsible for planning and recommendations related to UTSU policies and Bylaws.

MEMBERSHIP

2. The Membership of the Governance Committee is as follows:
 - a. Vice-President, Finance and Operations (Chair)
 - b. President
 - c. A minimum of three (3) and a maximum of seven (7) directors in accordance with Article 8, Section 2 of the UTSU Bylaws.
 - d. The Director, People and Culture, and General Manager / CAO shall serve as non-voting members.

DUTIES & RESPONSIBILITIES

3. The Governance Committee shall review UTSU policies, Bylaws, and other governance matters.
4. The Governance Committee may evaluate and make recommendations on changes to said governance matters.
5. The Chair shall be responsible for creating the agenda on the advice of Committee members, and uploading it to the shared drive after meetings. The Chair shall be responsible for ensuring minutes are uploaded to the shared drive.

DELIVERABLES

6. The committee shall ensure the following deliverable requirements are met in service to its mandate each year:
 - a. Review proposed changes to UTSU Bylaws, governance matters, and policies for recommendation to the Board of Directors.

MEETING & DECISION MAKING PROCEDURES

7. The Governance Committee shall be struck by the incoming Board at their first meeting in May of each year.

8. The Governance Committee shall meet as needed beginning no later than July and ending in April of each year.
9. The Governance Committee shall meet in open session unless determined otherwise by the committee or the Bylaws and Policies.
10. Votes shall be decided by a simple majority (50% + 1) of members present and voting, unless otherwise indicated in board policies or UTSU Bylaws.
11. In serious and time-sensitive situations, the Chair may call a Governance Committee Meeting with a minimum of 24 hours' notice and sending of the meeting package.
12. Personnel and visitors may be invited to Governance Committee meetings at the request of members by and at the discretion of the chair. These personnel and visitors shall have speaking rights, but shall only be invited for the purpose of presenting information about agenda items which would otherwise not be heard.
13. Members shall have three (3) speaking turns limited to three (3) minutes for each item.
14. Members shall be granted additional time or times as needed for items, if required, at the discretion of the Speaker. Members shall strive to present items concisely and clearly.
 - a. The speaker is recommended to do so if the discussion is productive and relevant to the topic at hand or by a vote of the majority of committee members present.
15. Executive Assistants (EAs) may be present at Governance Committee meetings for the purpose of minute-taking.
16. Agendas and minutes from each meeting shall be uploaded by the chair to the shared board drive.

FIDUCIARY SCOPE

17. The application of this committee's fiduciary obligations includes, but is not limited to:
 - a. Duty of Care: Making sure all changes follow consistency, clarity, and legal soundness
 - b. Duty of obedience: Ensuring every recommended change aligns with the UTSU's bylaws and non-profit obligations
 - c. Duty to disclose: Providing transparent reports and rationales to the Board and membership whenever governance documents are added, removed, or amended.

DELEGATION OF DELIVERABLES

18. If the committee fails to meet quorum for 2 consecutive meetings, the responsibility for completing the assigned deliverables shall be delegated to the Board of Directors, until such time that the committee can be reconvened.